

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DATED FILED:

-----X **INDEX NO.**
SHENEEQUA HART

Plaintiffs

Plaintiffs designate Bronx as the
Place of Trial based on the
Plaintiff's residence

THE CITY OF NEW YORK, P.O. TERRENCE
JONES, Shield No. 7314 and SGT. "JANE DOE"
the name being fictitious as same is not known

SUMMONS

Defendants.

TO THE ABOVE DEFENDANTS:

You are hereby summoned and required to
serve upon plaintiff's attorneys an answer to the complaint in
this action within twenty (20) days after the service of this
summons, exclusive of the day of service, or within thirty (30)
days after service is complete if this summons is not personally
delivered to you within the State of New York. In case of your
failure to answer, judgment will be taken against you by default
for the relief demanded in the complaint.

Dated: Bronx, New York,
February 14, 2019

ROSSI LAW PLLC
Attorneys for Plaintiff
180 South Broadway, Suite 200
White Plains, New York 10605
718-292-2952

Defendants' Name and Address:

City of N.Y. 1 Centre Street, N.Y., N.Y. 10007
P.Os Jones & Jane Doe 47th pct 4111 Laconia Ave., Bronx, N.Y.
10466

Notice: false arrest, false imprisonment, civil rights
violations, negligence, personal injuries, permanent injuries

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you
by default in a sum within the jurisdictional limits of the
Supreme Court and more than the jurisdiction of all inferior
Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SHENEEQUA HART

Plaintiff,

-against-

VERIFIED COMPLAINT

INDEX NO

THE CITY OF NEW YORK, P.O. TERRENCE
JONES, Shield No. 7314 and SGT. "JANE DOE";
the name being fictitious as same is unknown.
Defendants.

Plaintiff, as and for his/her Verified Complaint, by his/her attorney(s), ROSSI LAW
PLLC, allege the following upon information and belief;

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York.
2. A notice of claim was served upon defendant, "CITY", within ninety(90) days of the
occurrence and/or accrual of the cause of action.
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
"CITY", has failed to adjust and /or dispose of the claim presented therein.
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action.
5. That at all times hereinafter mentioned, defendant, "CITY", owns the "NEW YORK
CITY POLICE DEPARTMENT", (hereafter referred to "POLICE"), as a subsidiary;
6. That at all times hereinafter mentioned, the plaintiff resides in Bronx County.
7. That at all times hereinafter mentioned, defendant, "CITY", maintains, manages, operates
and controls the " POLICE";

8. That at all times hereinafter mentioned, defendants, P.O. Terrence Jones Shield No. 7314 and Sgt. "Jane Doe" are employed by the "POLICE" of the defendant, "CITY";

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

9. The Plaintiff repeats and re-iterates each and every allegation of the complaint herein numbered 1- 8 as though same were fully set forth herein.
10. On December 9, 2017 the plaintiff was physically assaulted by her daughter Jache Bordon. The daughter was arrested and the plaintiff was awarded an order of protection against her daughter. On December 12, 2017 at approximately 1:45 pm the plaintiff's daughter broke into the home of the plaintiff and approached the plaintiff and her son Seth Hart. The plaintiff yelled at her daughter and began to call the police. The plaintiff, suffers from hypertension and claustrophobia began hyperventilating. The paramedics were summoned and the plaintiff entered the paramedic's vehicle. The paramedics were attending to the plaintiff,
11. Plaintiff was lawfully at said location. As the plaintiff was being attended to by the paramedics, a police vehicle appeared. The defendant P.O. Jones approached. The plaintiff advised P.O. Jones that she had an order of protection against her daughter. Before she could explain any further, P.O. Jones violently removed the plaintiff from the vehicle and placed in handcuffs. The plaintiff was not permitted to show the arresting officers the order of protection.
12. Plaintiff was falsely imprisoned at both the scene of the occurrence and continuing thereafter at the 47th Precinct, where he remained trembling in a cell as she is claustrophobic until approximately 11:00 pm and thereafter at Central Booking, where he remained until December 11, 2017 at 11:00 am, the Criminal Court, after which she was

released.

13. As a result of the aforementioned, the Plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
14. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
15. The criminal action against the Plaintiff was disposed of as follows: Case dismissed January 31, 2018 by request of the Assistant District Attorney
16. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. The Plaintiff was, without cause or provocation, falsely arrested.
19. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
20. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1"

through "21" herein as if more fully set forth at length:

23. Defendants maliciously prosecuted criminal charges against the Plaintiff, as a proper investigation would have revealed the charges to be false and unfounded and on January 31, 2018 the charges were dismissed.
24. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
25. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "26" herein as if more fully set forth at length:
28. At the aforementioned time and place, the Plaintiff was negligently treated by various police officers employed by the defendant, "CITY" and they were acting within the scope of their authority and with the knowledge and the approval of their employers.
29. As a result of the foregoing, the plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
30. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all

inferior Courts.

FIFTH CAUSE OF ACTION-BATTERY

32. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length.
33. At the aforementioned time and place, the Plaintiff was battered by defendants without any provocation on the part of the Plaintiff as a police officer punched the Plaintiff in the face and thereafter slammed the Plaintiffs head into a wall.
34. As a result of the aforementioned, the Plaintiff sustained emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
35. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
36. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-INVASION OF PRIVACY:

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. The aforementioned occurrence constituted an invasion of the privacy of the Plaintiff.
39. As a result of the foregoing, the Plaintiff sustained emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
40. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein
41. As a result of the foregoing, the Plaintiff has been damaged in a sum within the

Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "41" herein as if more fully set forth at length:
43. As a result of the aforementioned occurrence, the Plaintiff was deprived of her civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343.
- Defendants arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well being, safety and constitutional rights.
44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs , policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said department.
46. . The aforementioned customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) Failing to permit the plaintiff to retrieve an order of her
Protection to establish her innocence
- b) arresting innocent persons wrongfully apprehended
- c) arresting innocent persons notwithstanding the existence of
credible evidence which exonerates the accused of any
criminal wrongdoing

47. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct. as documented in the following civil rights actions filed against the City of New York:

Frank Douglas v. City of New York, United States District Court Southern
District of New York, 03 CV 6475;

Darnell Flood v. City of New York, United States District Court Southern
District of New York. 03 CV 10313;

Theodore Richardson v. City of New York, et al, United States District Court,
Eastern District of New York, 02 CV 3651;

Phillip Stewart v. City of New York, United States District Court, Southern
District of New York, 05 CV 2375;

Benjamin Taylor v. City of New York, United States District Court. Eastern
District of New York, 01 CV 5750;

Angel Vasquez v. City of New York, United States District Court, Eastern
District of New York, 05 CV 3552;

- Alvin ,Williams v. City of New York, United States District Court, Southern
District of New York.. 05 CV 4013:

Terrence Burton v. City of New York, United States District Court,

District of New York, 06 CV 6884.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff
49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations as alleged herein
50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.
51. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully for approximately one day
52. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of plaintiff,
53. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
54. All of the foregoing acts by the defendants deprived the plaintiff of federally protected rights, including but not limited to:
- A. Not to be deprived of liberty without due process of law.
 - B. To be free from seizure and arrest not based upon probable cause.

- C. To be free from unwarranted and malicious criminal prosecution.
- D. Not to have cruel and unusual punishment imposed upon him/her; and
- E. To receive equal protection under the law.

- 55. The plaintiff intends to seek punitive damages on all counts.
- 56. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
- 57. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
- 58. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

EIGHTH CAUSE OF ACTION-NEGLIGENCE

- 59. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "58" herein as if more fully set forth at length:
- 60. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers.
- 61. As a result of the foregoing, Plaintiff, suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.
- 62. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
- 63. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the plaintiff seeks damages in each cause of action, in a sum within the jurisdictional limits of The Supreme Court of the State of New York and in excess of the jurisdictional limits of all inferior Courts.

Dated :Bronx, New York

December 18, 2018

Arlen S. Yalkut P.C.
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952

STATE OF NEW YORK)
) ss.
COUNTY OF BRONX)

The undersigned, being duly sworn, deposes and says that the deponent is the defendant in the within action; that deponent has read the foregoing Summons & Complaint and knows the contents thereof; that the same is true to deponent's own knowledge; except as those matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Shenequa Hart
Shenequa Hart

Sworn to before me this
14th day of Feb. 2018

Jose A. Rossi
NOTARY PUBLIC

ROSE A. ROSSI
Notary Public, State of New York
No. 02-4947625
Qualified in Westchester County
Commission Expires 2/27/19